

March 14, 2025

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RE: AI Action Plan

Dear Faisal D'Souzar:

The Council of Autism Service Providers (CASP) is a non-profit trade association of autism service provider organizations, with a demonstrated commitment to promoting and delivering evidence-based practices for individuals with autism. CASP represents the autism provider community to the nation at large, including government, payers, and the general public. CASP provides information, education, and promotes the generally accepted standards of care for applied behavior analysis (ABA). CASP is committed to addressing barriers that impact access to quality services delivered by qualified providers.

CASP supports the responsible development of artificial intelligence (AI) technologies and the value it brings to delivering quality treatment for those diagnosed with autism. CASP appreciates the opportunity to provide public comment to The White House Office of Science and Technology Policy (OSTP), specifically on the Action Plan for AI Strategy. The generative technologies that have resulted from the advancement of AI have shown to be beneficial in many areas. However, when we examine the intersection of AI and applied behavior analysis (ABA), we are met with ethical challenges that must be considered.

The ABA treatment model is focused on the analysis, development, and implementation of treatment recommendations of a professional behavior analyst. Intensive or comprehensive ABA involves the hands-on and direct face-to-face application of interventions resulting in large data sets pertaining to the patient's adaptive behavior across various settings and throughout time. However, there is a substantial administrative burden arising from the clinical documentation requirements, as well as activities related to ensuring ongoing access to care (e.g., verification of benefits, authorizations, claim submissions). In addition, the responsible practitioner must ensure the patient's privacy and confidentiality are protected, patient treatment outcomes reflect personal autonomy and progress, and community stakeholders or funding sources receive or can obtain timely information via the patient's medical record.

The ABA industry highlights both the potential benefits (efficiency) and the risks (privacy and IP issues) of the use of AI in the healthcare setting. Guidance pertaining to the use of AI in healthcare should allow for innovation in analyzing large data sets and summaries that assist clinical decision making and patient outcomes. This guidance should also encourage the use of AI models that further administrative efficiencies while also ensuring that the outputs and processes protect client privacy. This guidance should be in the form of identifying the key principles of health care and protecting or advancing those while encouraging implementing efficiency and analytic tools that augment decision making and improve outcomes.

The Counterargument: The Opponents to Regulation

In order to ensure our competitive position in the world economy and allow for the development of AI, little to no regulation should be imposed on the industry to allow for its incubated growth and market acceptance.

Opponents to regulation argue the following: the market will weed out bad actors, unreliable or untrustworthy AI products; regulation will suppress or delay needed development and research in AI; and any regulation or guidance promulgated will be obsolete or unhelpful due to the speed of advancements in the AI industry.

First, the argument that the market will naturally weed out bad actors and unreliable AI products overlooks the reality that market forces alone are insufficient to prevent harm, particularly when AI failures can have irreversible consequences in areas like healthcare. Historically, industries with high stakes have required regulation to prevent systemic risks and protect consumers. Similarly, the claim that regulation will suppress or delay AI innovation is misleading; well-crafted regulations can provide clarity and stability, fostering responsible innovation rather than hindering it. In fact, industries with clear ethical and safety standards (e.g., bio-ethics and cyber security) often attract more investment and public trust (NIST, 2024).¹ Lastly, while the rapid pace of AI advancement is undeniable, this does not reduce the need for regulation.. A flexible, principles-based regulatory framework can provide ethical safeguards that evolve alongside AI technology, ensuring ongoing accountability without stifling progress.

Three-pronged focus of regulation within the field of ABA: Clinical Decision Making; Health Care Optimization; Industry Compliance Risks

The rapid deployment of AI in ABA presents significant challenges, particularly regarding clinical decision-making risks, healthcare optimization pitfalls, and industry compliance concerns.

¹ National Institute of Standards and Technology (2024) The NIST Cybersecurity Framework (CSF) 2.0. (National Institute of Standards and Technology, Gaithersburg, MD), NIST Cybersecurity White Paper (CSWP) NIST CSWP 29. <https://doi.org/10.6028/NIST.CSWP.29>

Clinical Decision Making

AI's role in clinical decision-making raises ethical and practical concerns, as models may generate recommendations that lack contextual nuance or fail to account for individualized patient needs. Crowe et al., (2024) describe clinical decision making as a fundamental complex, cognitive model that at its core is conceptualized as the collecting, organizing, and the interpreting of information necessary to design effective interventions.² This process is enhanced by working alongside years of invaluable experience coupled with mitigating idiosyncratic patient centered variables. At a functional level, AI has considerable weaknesses. Two of these weaknesses are hallucinations (confabulations) and omissions. The supposition is that behavior analysts will provide ongoing monitoring of AI generated output in order to detect errors. However, behavior analysts cannot be expected to recognize when all AI tools underperform and thus generate errors. What can be confidently stated is that even small errors can lead to patient harm.

Detecting and reporting AI confabulations and omissions requires a multi-faceted approach that combines automated detection, human oversight, and accountability mechanisms. Flagging potential misinformation through anomaly detection and confidence scoring should be integrated into user interfaces. Additionally, user feedback loops and expert review panels ensure human intervention where necessary. Automated logging and regulatory compliance play a crucial role in maintaining transparency, allowing for traceability and correction of errors. AI systems should also provide real-time user warnings when information is unreliable, linking to verified sources. To improve accuracy over time, models must be regularly retrained, incorporating bias reduction techniques. By implementing these safeguards, AI can enhance reliability, reduce misinformation, and foster greater public trust in its outputs. That is why it is important to have regulatory minimum requirements that ensure these safeguards are required as a part of any AI technology's infrastructure.

Health Care Optimization

AI can contribute to healthcare optimization by reducing administrative burdens and streamlining service delivery. However, it can also risk prioritizing efficiency over person-centered care. If not carefully implemented, automation may compromise the quality of behavioral assessments and individualized treatment planning.

Additionally, as AI becomes increasingly integrated into healthcare optimization, transparency and informed consent are essential to maintaining ethical standards in ABA. Patients (and their caregivers where appropriate) have the right to understand how AI is being used in their care and the safeguards in place to protect their privacy and treatment integrity. For example, a comprehensive disclosure statement should include the purpose of AI in service delivery, a clear explanation of its role in

² Crowe, B., Shah, S., Teng, D. et al. Recommendations for Clinicians, Technologists, and Healthcare Organizations on the Use of Generative Artificial Intelligence in Medicine: A Position Statement from the Society of General Internal Medicine. *J GEN INTERN MED* 40, 694–702 (2025).
<https://doi.org/10.1007/s11606-024-09102-0>

decision-making, assurances that AI does not replace professional clinical judgment, and the steps taken to maintain data security and regulatory compliance. Additionally, the disclosure statement should provide an avenue for patients and caregivers to ask questions, express concerns, and opt out of AI-driven processes when appropriate. By ensuring full transparency, we can promote trust, uphold ethical standards, and maintain a patient-centered approach in ABA services.

Organizations are recognizing the impact AI has and will continue to have across many sectors. Regarding healthcare, AI has the ability to streamline processes, thus more efficiently increasing access to healthcare for more patients. However, it is generally accepted for the typical patient, AI is still viewed as a novel, unfamiliar technology. Due to this perspective, it is critical to establish guidelines requiring transparency with the patient when AI is integrated into their care. According to Stanford's AI index report, the United States is currently ranked as top in AI research and implementation. Our commitment to furthering the use and development of AI uniquely positions us with the opportunity to concurrently lead initiatives regulating its use. As such, leading this initiative by responding to risk and building public trust should be the drivers for developing regulatory standards.

Industry Compliance Risks

Finally, industry compliance risks are a growing concern as AI must align with federal and state regulations, ethical guidelines from the Behavior Analyst Certification Board® (BACB®), and payer policies. Misuse or misinterpretation of AI generated data could lead to violations of copyright laws, privacy laws (e.g., HIPAA), improper billing practices, and liability issues.

Many, if not all, of the current commercial and public AI platforms have been developed using copyrighted or other intellectual property (IP) and are subject to active litigation. This has caused many end users to wonder if any use of AI is ethical at this point given the potential widespread use of protected IP to train the current available AI platforms. In the healthcare industry, mental health, and specifically for ABA providers, many assessment tools are easily accessed or replicated without obtaining the necessary licensing. To encourage responsible use and protections for end users, future guidance should balance protecting IP by considering the following:

- A. Implementing a process for licensing data sets, identifying and registering public data, establishing protocols for opting out or removing data from public access, and developing a way to ensure transparency of data used for training AI platforms.
- B. Encouraging self-policing and internal auditing by AI platform vendors, build out tort claims or legal protections applicable to intentional or per-se violations, such as strict liability and penalty structures for intentional or wantonly negligent disregard of IP protections.

Additionally, the OSTP should provide guidance within the AI Action Plan that emphasizes the importance of aligning the use of AI in healthcare with existing privacy laws (e.g., HIPAA). Threats to privacy laws can too easily exist when providers inadvertently include protected information when using AI platforms within their clinical practice. Security measures should include clear disclosures of ownership interests of AI platforms, well-developed analysis of cybersecurity risks associated with open

source programming, internet connected storage, servers, and data encryption methods, and disclosures required for patient and consumer protections. This has been described as a balancing act between efficiencies offered by AI and the risks of breaches of ePHI or other private commercial work products.

Finally, the last crucial balancing act is between efficiency and person-centered care. While AI can generate content with minimal inputs in the context of treatment and billing practices, overuse or over reliance on AI will negatively impact patient care. This could likely lead to improper billing practices, a significant risk is posed when AI generated data are misinterpreted or used to automate billing without proper human oversight, potentially leading to fraudulent claims, Medicaid/insurance audits, and financial penalties. And lastly, liability issues arise when AI driven clinical recommendations contribute to ineffective or harmful interventions, raising ethical and legal concerns for providers who must ensure that all decisions align with professional standards, regulatory requirements, and evidence-based ABA practices. CASP encourages the OSTP to address these concerns within the AI Action Plan. Guidance must make it clear that AI should not replace the skill and expertise of the clinician but should support and encourage efficient use of AI as a tool and must ensure if/when AI is used healthcare providers are required to obtain informed consent..

Conclusion

In conclusion, in developing an AI regulatory framework, it is important to not stifle AI innovation. Rather, a robust framework and clear guidance will foster public trust and confidence in both the use of the platforms and the protections of patient and provider end users. Regulations in AI are necessary in order to ensure clinical decision making is led by clinicians, health care optimization remains patient centric, industry compliance risks are minimized, and guidance is a good way to test or pilot potential regulations and their effect on AI. Without regulation, patient harm is inevitable and provider risks are multiplied. While we support a robust AI market, we unequivocally implore the OSTP to include guidance that will lead to effective regulations of its use within the AI Action Plan. CASP thanks the OSTP for the opportunity to provide comments and looks forward to the benefits of responsible developments within AI technologies.

Respectfully Submitted on behalf of CASP's Artificial Intelligence and Machine Learning workgroup,

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